

25TRCV03584 25TRCV03584

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-30

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Case Number: 25TRCV03584 Hearing Date: June 30, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

ALBERT
McMULLEN, an Individual, and JO McMULLEN, an Individual

Plaintiff,

Case No.:

25TRCV03584

vs.

[Tentative]
Granted

BARSHAY
AND PETERS MANAGEMENT COMPANY, INC., a California corporation; ADAM BARSHAY,
an Individual; LIONEL PETERS, an Individual; BRIANNA MCSWAIN, an Individual;

CHARLOTTE ECKER, an Individual; TERUNOBU MAEZAWA, an Individual; LIU FANG MAEZAWA, an Individual; AKIRA MAEZAWA, an Individual; CHRISTOPHER TOMOHIKO ETO, an Individual; and DOES 1-50,

Defendant.

Hearing

Date: June 30, 2026

Moving Parties: Defendants Christopher Tomohiko Eto

Responding Party: N/A

HEARING: Demurrer

The

Court considered the moving papers.

RULING

The Court sustains the
Demurrer with leave to amend.

BACKGROUND

On

October 17, 2025, Plaintiffs Albert and Jo McMullen filed the Complaint against Defendants Barshay and Peters Management Company, Adam Barshay, Lionel Peters, Brianna McSwain, Charlotte Ecker, Terunobu Maezawa, Liu Fang Maezawa, Akira Maezawa, and Christopher Tomohiko Eto, alleging causes of action for negligence, private nuisance, breach of the implied warranty of habitability, breach of the implied covenant of peaceful and quiet enjoyment, harassment, civil RICO, and IIED.

On March 30, 2026,

Defendant Christopher Tomohiro Eto filed the Demurrer.

No opposition has been
filed.

JUDICIAL NOTICE

The Court may take judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).)

Defendant requests that the Court take judicial notice of the Complaint filed in LASC case no.24IWUD02070. The Court grants this request pursuant to Evidence Code section 452 subd. (c).

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet
and Confer

Before filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)

Here, Defendant has filed a form meet and confer declaration. Therefore, the Court finds that Defendant has satisfied the meet and confer requirements.

Defendant Christopher Tomohiro Eto demurs to the Complaint in its entirety.

Lack of a contractual relationship

Defendant argues the third, fourth, and fifth causes of action are improper because each depends on the existence of a residential lease relationship between Defendant and Plaintiff, and no such relationship exists or can be alleged based on the complaint's own allegations. Defendant contends the implied warranty of habitability and the covenant of quiet enjoyment arise from implied terms in a lease agreement, and harassment claims under Civil Code section 1946.2 similarly require a landlord-tenant relationship.

Causes of action for breach of the implied warranty of habitability, breach of the implied covenant of peaceful and quiet enjoyment, and harassment require a landlord-tenant relationship. (See *Green v. Superior Court* (1974) 10 Cal.3d 616, 629; *Ginsberg v. Gamson* (2012) 205 Cal. App.4th 873, 896-897; Civ. Code § 1946.2.)

Here, the Complaint fails to allege any contract or landlord-tenant relationship between Plaintiff and Defendant.

Therefore, the Court sustains the demurrer as to the third, fourth, and fifth causes of action with leave to amend.

Cause of Action 1 and 2 – Negligence and
Private Nuisance

Defendant argues that both the negligence and private nuisance causes of action fail because they share the same foundational deficiency, the absence of a legal duty owed to Plaintiff. Defendant contends that duty is a threshold element of both claims, and that paragraph 7 of the complaint, which states that Defendant represented the Owners, affirmatively negates any duty running to Plaintiff while at most suggesting a duty owed to the Owners themselves.

Defendant is incorrect in asserting that a private nuisance claim requires duty. (See *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937-939.) Furthermore, everyone has a duty to act with reasonable care in the management of his person and property. (Civ. Code, § 1714.) Here, however, the Complaint does not allege any actions taken by Defendant that caused a breach of duty or created a nuisance. Consequently, the Court finds that Plaintiff has failed to allege the elements of a cause of action for negligence or private nuisance.

Therefore, the Court sustains the demurrer as to the first and second causes of action with leave to amend.

Cause of Action 6 – Civil RICO

“The elements of a civil RICO cause of action have been variously stated and in fact differ according to the type of prohibited activity alleged. In general, however, the plaintiff must prove that the defendant caused injury to the plaintiff's business or property by engaging in a pattern of racketeering activity in connection with an enterprise which affects interstate commerce.” (*Gervase v. Superior Court* (1995) 31 Cal.App.4th 1218, 1232.)

Defendant argues the civil RICO cause of action fails because the Complaint does not adequately allege any predicate act listed under 18 United States Code section 1961(1), which is a prerequisite to maintaining a civil RICO claim.

Defendant argues the wire fraud predicate act

is insufficiently pleaded because the Complaint contains no allegation of transmission through interstate or foreign commerce as required by 18 United States Code section 1343. Defendant contends that paragraph 39's allegation that Defendants transmitted false electronic communications and wire transfers between themselves says nothing about how those communications were transmitted, and that electronic communications can be transmitted without involving interstate commerce at all.

Defendant further contends the Complaint fails to allege the obtaining of money or property through false or fraudulent pretenses, the other required element of wire fraud.

Last, Defendant argues fraud must be pleaded with particularity, showing how, when, where, to whom, and by what means the representations were made, and that the Complaint contains no allegations identifying the specific fraudulent pretenses, who made them, or to whom they were directed.

Here, the Court finds that the Complaint fails to allege any fraudulent actions taken by Defendant with the requisite particularity. (See *In Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) Furthermore, the Complaint does not allege any interstate commerce.

Therefore, the Court sustains the Demurrer as to the sixth cause of action with leave to amend

Cause of Action 7 – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

Defendant argues that the Complaint does not identify the specific conduct by Defendant intended to cause emotional distress. Defendant further contends that the Complaint's predominant characterization of Defendant's conduct as negligent directly undermines any allegation of intentional conduct and compounds the pleading

deficiency.

Defendant also

argues that the allegations fall far short of the standard requiring conduct so extreme as to exceed all possible bounds of decency and be utterly intolerable in a civilized community.

To state a cause of

action for IIED Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 161.)

Here, the Complaint

does not include any actions attributed to Defendant which are so extreme as to exceed all bounds of that usually tolerated in a civilized society.

Therefore, the

Court sustains the Demurrer as to the seventh cause of action with leave to amend.